DECLASSIFIED: NND 730032,760050
By Mdh D Date 1-4-79

Filed by the Secretary
at Cabinet meeting,
12-19-41

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December 19, 1941

MEMORANDUM FOR THE SECRETARY

1. The Joint Declaration prepared today contains the two principal features customarily found in a military alliance. These are (1) a pledge of full support and co-operation in conducting the war against a common enemy, and (2) a pledge not to cease hostilities against the common enemy except by mutual agreement. Military alliances usually stipulate that the participating parties shall not conclude peace except by a mutual agreement. This Joint Declaration may be an improvement in this connection as it provides that the signatory governments shall not "cease hostilities against or conclude a separate armistice" except by common agreement. The present alliance between Great Britain and the Soviet Union provides that the signatories will "neither negotiate nor conclude an armistice or treaty of peace except by mutual agreement". In this connection I think you will find useful some of the information contained in my memorandum of December sixteenth on the subject of military alliances, a copy of which is attached hereto.

2. The Supreme War Council envisaged in the memorandum prepared today presumably would be far more effective than the Supreme

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Supreme War Council of 1917-1918 because the United States would have a political representative actively participating, whereas then the participation was principally military in the person of General Bliss. Furthermore, this plan for a Supreme War Council envisages representation on the Staff, responsible to the Supreme War Council, of members of the naval and air forces of the participating governments whereas the earlier one provided only for a permanent military representative. One of the greatest arguments in favor of the plan envisaged here is that it would probably result in unified command in many theatres of the war. One of the greatest achievements of the earlier Supreme War Council was that it did greatly assist in bringing about a unified command on the Western Front.

Carlton Savage

CS:AR

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December 16, 1941.

Mr. Secretary:

In connection with the proposed joint declaration of the nations warring against the axis powers, I nave studied again the alliance of 1778 between the United States and France, several agreements of alliance during the first World War, and two similar agreements of the present war.

The treaty of alliance between the United States and France was signed on February 6, 1778. It contained the following provisions: (1) If war should break out between France and Great Britain, during the continuance of the existing war, France and the United States "shall make it a common cause, and aid each other mutually with their good offices, their counsels, and their forces, according to the exigence of conjunctures as becomes good and faithful allies." (2) The essential and direct end of this defensive alliance was to maintain effectually the liberty, sovereignty, and independence of the United States. (3) Neither of the two parties should conclude either truce or peace with Great Britain without the formal consent of the other. (4) France and the United States would invite other powers to accede to this alliance.

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In an Act of Congress, approved July 7, 1798, it was stated that this treaty of alliance, and certain other treaties with France, "shall not henceforth be regarded as legally obligatory on the government or citizens of the United States."

One hundred forty-one years after this treaty of alliance, President Wilson signed a treaty of June 28, 1919 with France providing that if the peace treaty stipulations relating to the left bank of the Rhine did not at first provide adecuate security and protection to France, the United States should be "bound to come immediately to her assistance in the event of any unprovoked movement of aggression against her being made by Germany." This treaty did not become effective as it was not ratified by the Senate of the United States.

One month after the outbreak of the World war in 1914, the Pact of London was signed by representatives of Great Britain, France, and Russia. That pact of September 5, 1914 was a declaration that the three governments "mutually engage not to conclude peace separately during the present war"; and that when terms of peace came to be disoussed, no one of the three allies would demand conditions of peace without the

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previous agreement of each of the other Allies. This pact was acceded to by the Japanese Government on October 19, 1915. The past was broadened on November 30, 1915, to include Italy in addition to Great Britain, France, Japan, and Russia.

During this period of the first World War there were concluded various secret treaties and agreements by the Allied Governments whereby they agreed to certain territorial changes to be made after the successful termination of the war. While the Government of the United States, upon our entrance into the war, was aware of the existence of some of these secret treaties, it did not pay much attention to them. The United States did not sign an agreement of alliance with the Allies and did not endeavor, upon entering the war, to bind the Allies to any war aims. For this indifference, the Wilson Administration has been severely criticized.

In the present war, Great Britain and Russia concluded an agreement, on July 12, 1941, providing that "the two governments mutually undertake to render each other assistance and support of all kinds in the present war against Hitlerite Germany"; and that "they further undertake that during this war they will

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neither negotiate nor conclude an armistice or treaty of peace except by mutual agreement."

A few days ago Germany, Italy, and Japan concluded an agreement declaring that they would "henceforth conduct in common and jointly a war which has been imposed on them by the United States of America and England, by all means at their disposal and until the end of hostilities"; and that each country undertook for itself that "none of the parties to the present accord will conclude either armistice or peace, be it with the United States or with England without complete and reciprocal agreement."

In the light of our experience during the first World War, it would seem highly appropriate to bind our associates in this war to a program of principles such as is embodied in the Atlantic Charter. In the light of that experience also, it would be prudent for the United States to ascertain from these governments whether there are in existence any secret agreements which provide for territorial or other settlements at the conclusion of this war.

Carlton Savage

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